

22STCV11954 22STCV11954

County: los-angeles

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Department: 516

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Case Number: 22STCV11954 Hearing Date: August 10, 2026 Dept: 516

JUDGE JAMES I. MONTGOMERY

DEPARTMENT 516

Hearing Date: August 10, 2026

Case Name: Laguerre, et al. v. Manhattan Loft, LLC

Case No.: 22STCV11954

Matter: Motion to Enforce Settlement

Moving Party: Plaintiffs Lam Vu and Jas Jeffress

Responding Party: None

Tentative Ruling: Plaintiffs Lam Vu and Jas Jeffress's motion to enforce settlement is denied.

Plaintiffs Michael Laguerre, Robert Alvin Johnson, Kerry-Ann Morrison, Joselyn Garcia, Alexander Mattera, Whitney Coss, Eric Bradley, Arman Musakhanyan, Damaris Cervantes, John Michael Triana, Jamar Hart, Natali Babiyans, Jamal Shakir, Alisa Garrett, Keith Thomas, Thomas Syrowski, Justin Goslee, Jasmyme Cannick, Giovanna Dagostino, Alex Onofre, Jennifer Bailey, Matthew Dutcher, Kevin Reeves, Jacqwel Brown, Jaida Kyi, Daniel Kirkland, Nathaniel Salgo, Devante Roper, D'Marques Riley, Mario Foster, Brandie Rossi, Boston Osborne, Samantha Bran, Paul Martignetti, Sherri Grant, Lam Vu, Jas Jeffress, Jean Juste (collectively "Plaintiffs") sued their landlord, Manhattan Loft, LLC ("Manhattan Loft") and its alleged agents, Erica Rivera and Pam Pham-Le ("Bich-Hang Pham- Le") (collectively "Defendants").

Plaintiffs Lam Vu and Jas Jeffress ("Moving Parties") move for the Court to enforce the settlement pursuant to Code of Civil Procedure Section 664.6. No opposition was filed.

Legal Standard

The Court is authorized to enter judgment pursuant to the stipulated settlement. (Code Civ. Proc., § 664.6.) In reviewing a motion to enforce a settlement, the Court determines “whether the parties entered into a valid and binding settlement.” (Hines v. Lukes (2008) 167 Cal.App.4th 1174, 1182.) “A settlement is enforceable under section 664.6 only if the parties agreed to all material settlement terms. [Citations.] The court ruling on the motion may consider the parties’ declarations and other evidence in deciding what terms the parties agreed to, and the court’s factual findings in this regard are reviewed under the substantial evidence standard. [Citations.] If the court determines that the parties entered into an enforceable settlement, it should grant the motion and enter a formal judgment pursuant to the terms of the settlement.” (Id. at pp. 1182-1183; see also Osumi v. Sutton (2007) 151 Cal.App.4th 1355, 1357 [“Strong public policy in favor of the settlement of civil cases gives the trial court, which approves the settlement, the power to enforce it”].)

Strict compliance with the statutory requirements is necessary before a court can enforce a settlement agreement under section 664.6. (Sully-Miller Contracting Co. v. Gledson/Cashman Construction, Inc. (2002) 103 Cal.App.4th 30, 37.) “[M]utuality of obligation must exist where the exchange of promises between promisor and promisee is meant to represent the contract’s consideration.” (Id. at p. 36.) The party seeking to enforce a settlement “must first establish the agreement at issue was set forth ‘in a writing signed by the parties’ (§ 664.6) or was made orally before the court.” [Citation.]” (Harris v. Rudin, Richman & Appel (1999) 74 Cal.App.4th 299, 304.)

Analysis

Moving Parties seek to enforce the parties’ Settlement Agreement pursuant to Code of Civil Procedure section 664.6.

As an initial matter, the relief the Moving Parties seek cannot be granted under Code of Civil Procedure section 664.6.

On April 7, 2025, the parties entered into a settlement for a total amount of \$2,200,00. On May 27, 2025, the Moving Parties filed a notice to relieve Plaintiffs’ Counsel Jacob Partiyeli as their Counsel of Record.

Code of Civil Procedure section 664.6 is designed to enforce the terms of an agreement between parties, not between self-represented litigants against former counsel of record. (See Code Civ. Proc., § 664.6, subd. (a).) Moving Parties are not requesting that the Court find that the Plaintiffs and Defendants entered into a settlement agreement.

Moreover, Moving Parties did not present the Court with any legal authority that the relief they seek can be provided under the provisions of Code of Civil Procedure section 664.6.

Thus, Moving Parties’ motion to enforce settlement is denied.

Conclusion

Plaintiffs Lam Vu and Jas Jeffress’s motion to enforce settlement is denied.